

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
WINSTON JOHNSON,

Plaintiff,

-against-

Filed: \_\_\_\_\_

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER RAMIL CASIMIR,  
Shield No. 11100, POLICE OFFICER JOHN SIROKA, Shield No. 22498,  
POLICE OFFICER DANIEL GERARDI, Shield No. 24821,  
POLICE OFFICER MATHEW MCCURRY, Shield No. 20597,  
DETECTIVE ANDRE OHARA, Shield No. 9483, and JOHN DOES  
#1-#4

Defendants.

Plaintiff designates  
KINGS County as the  
place of trial.The basis of venue is:  
The situs of occurrence-----X  
TO THE ABOVE-NAMED DEFENDANTS:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York  
April 22, 2019The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.  
The relief sought is monetary damages.

LIAKAS LAW, P.C.

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BY: Nicholas Mindicino, ESQ.  
*Attorney for Plaintiff*  
65 Broadway, 13<sup>th</sup> Floor  
New York, N.Y. 10006  
(212) 937-7765

**If you fail to respond, a judgment will be taken against you, by default, with interest from June 16, 2018.**

Defendants:**City of New York**

Office of the Corporation Counsel

100 Church Street

New York, New York 10007

**Police Officer Ramil Casimir, Shield No. 11100**

NYPD 75<sup>th</sup> Precinct, 1000 Sutter Ave, Brooklyn, NY 11208

**Police Officer John Siroka, Shield No. 22498**

NYPD 75<sup>th</sup> Precinct, 1000 Sutter Ave, Brooklyn, NY 11208

**Police Officer Daniel Gerardi, Shield No. 24821**

NYPD 75<sup>th</sup> Precinct, 1000 Sutter Ave, Brooklyn, NY 11208

**Police Officer Mathew McCurry, Shield No. 20597**

NYPD 75<sup>th</sup> Precinct, 1000 Sutter Ave, Brooklyn, NY 11208

**Detective Andre Ohara, Shield No. 9483**

NYPD 75<sup>th</sup> Precinct, 1000 Sutter Ave, Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
WINSTON JOHNSON,

Plaintiff,

Index No.:

-against-

VERIFIED  
COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER RAMIL CASIMIR,  
Shield No. 11100, POLICE OFFICER JOHN SIROKA, Shield No.  
22498, POLICE OFFICER DANIEL GERARDI, Shield No. 24821,  
POLICE OFFICER MATHEW MCCURRY, Shield No. 20597,  
DETECTIVE ANDRE OHARA, Shield No. 9483, and JOHN DOES  
#1-#4

Defendants.

-----X

The Plaintiff, Winston Johnson, by his attorneys Liakas Law, P.C., as and for this  
Complaint, respectfully alleges:

**NATURE OF THE ACTION / PRELIMINARY STATEMENT**

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, the Fourth and Fourteenth Amendments of the United States Constitution, Article I, Sections 6 and 12 of the Constitution of the State of New York, and the common law of the State of New York.

2. The claim arises from a June 16, 2018 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

**VENUE AND NOTICE OF CLAIM**

4. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Kings County.

5. Within 90 days of the events giving rise to this claim, plaintiff filed written notice of claim with the municipal defendant(s). Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

**PARTIES**

6. At all times relevant hereto, Plaintiff, WINSTON JOHNSON was and is a natural person, residing in Kings County, City and State of New York

7. THE CITY OF NEW YORK (or “the City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

8. Police Officer Ramil Casimir, Shield No. 11100, Police Officer John Siroka, Shield No. 22498, Police Officer Daniel Gerardi, Shield No. 24821, Police Officer Mathew McCurry, Shield No, 20597, and Detective Andre Ohara, Shield No. 9483 were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendants Casimir, Siroka, Gerardi, McCurry, and Ohara were involved in the illegal arrest and prosecution of plaintiff and/or failed to intervene in the actions of their fellow officers. Defendants Casimir, Siroka, Gerardi, McCurry, and Ohara are sued in their individual capacity.

9. John Does #1-4 are individuals whose name are currently unknown to plaintiff, are

employees of the NYPD, and are sued in their individual capacities. John Does #1-4 were NYPD officers who participated in the arrest of plaintiff as described below

10. At all times mentioned herein, defendants were acting under color of state and local law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of the City of New York and the State of New York.

### **FACTUAL ALLEGATIONS**

11. Prior to the events of June 16, 2018, Plaintiff's son was "wanted" by the NYPD in connection with a May 15, 2018 incident. Upon information and belief, an "i-card" was issued for Plaintiff's son in relation to that May 15, 2018 incident.

12. Plaintiff was not involved in the May 15, 2018 incident in any way.

13. On June 16, 2018, at or about 11:00 pm, defendant police officers came to Plaintiff's home at 424 Berrium Street, Brooklyn, NY.

14. Defendants came to Plaintiff's home attempting to arrest Plaintiff's son based on the i-card issued for him.

15. Plaintiff was laying in his bed when he was startled by noise at the front door.

16. Plaintiff, wearing only his boxers, went to the door at the vestibule to investigate the noise.

17. At this time, NYPD officers Casimir, Siroka, Gerardi, McCurry, and Ohara and John Doe #1-4 were attempting to force their way into Plaintiff's building.

18. When Plaintiff opened the door he was rushed by the officers.

19. Casimir, Siroka, Gerardi, McCurry, and Ohara and John Doe #1-4 used excessive and unnecessary force against Plaintiff, hitting him about his head and body.

20. Plaintiff was handcuffed and arrested.

21. Plaintiff was clothed only in his boxers; defendants did not allow him to cloth

himself before taking him from his home.

22. Plaintiff was brought to the 75<sup>th</sup> Precinct, and then to Brookdale Hospital where he was treated for injuries.

23. Claimant was eventually arraigned in Kings County Criminal Court on June 18, 2018.

24. Defendant McCurry was the arresting officer for plaintiff. Upon information and belief, Defendant McCurry took plaintiff into physical custody, utilized excessive force against him during that arrest, processed his arrest, prepared arrest paperwork related to his arrest, and coordinated with the District Attorney's office related to the prosecution of plaintiff.

25. Defendants Casimir, Siroka, Gerardi, McCurry, and Ohara personally participated in the arrest of plaintiff and the use of excessive force against Plaintiff, contributed to and/or approved paperwork related to the arrest of Plaintiff, and coordinated with the District Attorney's office related to the prosecution of plaintiff.

26. Defendants in their written reports and communications to the District Attorney's office created false evidence, misleading the prosecutor into believing Plaintiff obstructed the course of the arrest of his son.

27. In fact Plaintiff had no involvement in the arrest of his son, and did not and could not have obstructed the officers' arrest of his son.

28. Defendants Casimir, Siroka, Gerardi, McCurry, and Ohara understood that the arrest paperwork they drafted/approved/participated in would be distributed to fellow officers as well as the District Attorney's office, and used to determine what if any charges should be brought against plaintiff.

29. Defendants Casimir, Siroka, Gerardi, McCurry, and Ohara personally

communicated with a representative of the District Attorney's Office, and presented false evidence to the prosecutor despite knowledge that this information would be used to prosecute Plaintiff.

30. Plaintiff was charged with obstruction of governmental administration and resisting arrest.

31. Plaintiff released on his own recognizance after approximately twenty-six (26) hours. There is video of the incident.

32. Plaintiff appeared in Kings County Criminal Court approximately five times thereafter.

33. On November 30, 2018 charges against Plaintiff were dismissed.

34. As a direct and proximate result of the malicious and outrageous conduct of defendants as set forth above, Plaintiff suffered injuries including but not limited to emotional trauma, harm and distress, mental anguish, fear, embarrassment, and humiliation, loss of liberty, loss of property, psychological injury and suffering.

35. Plaintiff sustained physical injuries to his wrist, shoulder and knee, including a tear of the ligament in his left shoulder and a tear of the tendon in his left knee.

### **DAMAGES**

36. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his right to Due Process of Law under the Fourteenth Amendment to the United States Constitution;
- b. Violation of his rights under the Fourth Amendment to the United States Constitution to be free unreasonable search and seizure;
- c. Violation of his New York State Constitutional right under Article 1, Section 6

to Due Process of Law;

- d. Violation of his New York State Constitutional right under Article 1, Section 12, to be free from unreasonable searches and seizures;
- e. Loss of Liberty;
- f. Physical injuries and pain and suffering;
- g. Emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety;
- h. Economic loss.

**FIRST CAUSE OF ACTION**

**(42 U.S.C. § 1983 – as to Individual Defendants)**

37. The above paragraphs are here incorporated by reference.

38. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.

39. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

40. Defendants falsely arrested Plaintiff, maliciously prosecuted Plaintiff, used excessive force against Plaintiff, and failed to intervene in each other's obviously illegal actions.

41. Defendants' conduct also deprived Plaintiff of his right to due process of law, pursuant to the Fourteenth Amendment of the United States Constitution. Defendants presented false evidence against Plaintiff, thereby denying him his right to a fair trial.

42. Plaintiff has been damaged as a result of defendants' wrongful acts.



**SECOND CAUSE OF ACTION**  
**(False Arrest – as to Individual Defendants)**

43. The above paragraphs are here incorporated by reference
44. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
45. Defendants intended to confine plaintiff and in fact confined him.
46. Plaintiff was conscious of the confinement and did not consent to it.
47. The confinement was not privileged.
48. Plaintiff was damaged.

**SECOND CAUSE OF ACTION**  
**(Malicious Prosecution – as to Individual Defendants)**

49. The above paragraphs are here incorporated by reference.
50. Defendants, acting with malice, initiated a prosecution against plaintiff and caused him to be prosecuted.
51. Defendants did not have probable cause to initiate this proceeding.
52. The criminal proceedings were terminated in plaintiffs' favor.
53. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under New York State common law, and the New York State Constitution.
54. As a result of the malicious prosecution implemented by defendants, plaintiff was damaged.

**THIRD CAUSE OF ACTION**  
**(Assault – As to Individual Defendants)**

55. The above paragraphs are here incorporated by reference.

56. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

57. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the laws and Constitution of New York State.

58. Plaintiff was damaged by defendants' assault.

**FOURTH CAUSE OF ACTION**  
**(Battery – As to Individual Defendants)**

59. The above paragraphs are here incorporated by reference.

60. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered them.

61. Defendants used excessive and unnecessary force with plaintiff.

62. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the New York State Constitution.

63. Plaintiff was damaged by defendants' battery.

**FIFTH CAUSE OF ACTION**  
**(Respondeat Superior – As to City of New York)**

64. The above paragraphs are here incorporated by reference.

65. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.

66. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.

**SIXTH CAUSE OF ACTION****(42 U.S.C. § 1983 – Municipal And Supervisory Liability - as to Defendant City of New York)**

67. The above paragraphs are here incorporated by reference.

68. The City is liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular occurrence of false arrests by its law enforcement officers, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case.

69. The City's continuing failure to deter law enforcement misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts. In 2012, New York City paid out over \$131 million for the fiscal year, compared to 2011, when it paid out more than \$166 million, and 2010, when it paid \$128 million.<sup>1</sup> In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.<sup>2</sup> More than 40% of those settlements in 2011 stem from excessive force and false arrest.

70. The widely held assumption is that civil rights lawsuits deter law enforcement misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority

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<sup>1</sup> Mayor Michael Bloomberg's preliminary Management Report for FY 2013, available at [http://www.nyc.gov/html/ops/downloads/pdf/pmmr2013/2013\\_pmmr.pdf](http://www.nyc.gov/html/ops/downloads/pdf/pmmr2013/2013_pmmr.pdf), see page 6, last visited on June 25, 2013.

<sup>2</sup> "NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade," by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010 last visited on June 25, 2013.

to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails. Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

71. However, the City of New York has isolated law enforcement officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, or its officers. Civil rights lawsuits against law enforcement officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and law enforcement department action against officers. This “total disconnect” between officers’ liability and official discipline, results in a system where the City pays vast sums to settle false arrests, but does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise

failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

72. The City is liable for the damages suffered by plaintiffs in that, after learning of their employees' violation of plaintiffs' constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event.

73. The aforesaid event underlying plaintiffs' factual allegations was not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their law enforcement officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

74. The City has been alerted to the regular use of false arrests by its law enforcement officers, through lawsuits, civilian complaints, notices of claim, City Council hearings, newspaper reports, and cases resulting in declined prosecutions and dismissals, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case.

75. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights

litigation, towards individual officers repeatedly named in lawsuits, towards incidents repeatedly occurring in the same precinct, towards patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against plaintiff.

76. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated its law department from the discipline of law enforcement officers. Civil rights lawsuits against law enforcement officers have no impact on the officers' careers, regardless of the officers' responsibility lawsuit liability, even after multiple lawsuits. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and law enforcement department action against officers. Nothing has changed since 1999 and the present regarding this "total disconnect" between officers' liability and NYPD discipline, resulting in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests.

77. The Civilian Complaint Review Board ("the CCRB"), a City oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

78. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. In 2002, the percentage of officers who were the subject of substantiated CCRB complaints who received no discipline was 47%; in 2007, it was 75%.<sup>3</sup> The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provide so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms.

79. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the oversight agencies.

80. All of the aforementioned has created a climate where officers lie to prosecutors and in official paperwork and charging instruments, and testify falsely, with no fear of reprisal. “Informal inquiry by the court and among the judges of this court, as well as knowledge of cases

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<sup>3</sup> The NYCLU issued a report in September 2007 on the CCRB detailing the failure of the NYPD to follow up on substantiated CCRB complaints, among other failures by the City and the CCRB to address police misconduct: “Mission Failure: Civilian Review of Policing in New York City, 1994-2006”, available at: [http://www.nyclu.org/files/ccrb\\_failing\\_report\\_090507.pdf](http://www.nyclu.org/files/ccrb_failing_report_090507.pdf), last visited on June 25, 2013.

in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.” See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

81. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiffs’ civil rights, without fear of reprisal.



**REQUEST FOR RELIEF**

**WHEREFORE**, Plaintiff respectfully requests that judgment be entered as follows: Plaintiff demands compensatory damages, in the amount not to exceed jurisdictional limits, to the above-stated causes of action against all Defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: April 22, 2019  
New York, New York

Yours, etc.  
LIAKAS LAW, P.C.

By:



Nicholas Mindicino, ESQ.  
*Attorneys for Plaintiff*  
65 Broadway, 13th Floor  
New York, New York 10006  
(212) 937-7765

[illegible]

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York  
April 22, 2019

  
NICHOLAS MINDICINO, ESQ

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW KINGS

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WINSTON JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RAMIL CASIMIR, Shield No. 11100,  
POLICE OFFICER JOHN SIROKA, Shield No. 22498, POLICE OFFICER DANIEL  
GERARDI, Shield No. 24821, POLICE OFFICER MATHEW MCCURRY, Shield No. 20597,  
DETECTIVE ANDRE OHARA, Shield No. 9483, and JOHN DOES #1-#4

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**LIAKAS LAW, P.C.**  
Attorneys for Plaintiff(s)  
65 Broadway - 13<sup>th</sup> Floor  
New York, New York 10006  
212-937-7765

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**SUMMONS and VERIFIED COMPLAINT**

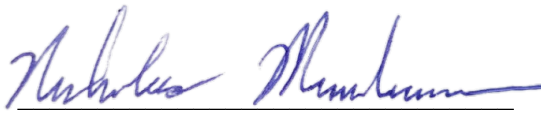
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STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State,  
affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in  
compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York  
April 22, 2019

  
\_\_\_\_\_  
Nicholas Mindicino, ESQ.

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PLEASE TAKE NOTICE

- ( ) that the within is a (certified) true copy of a Notice of \_\_\_\_\_ entered in the Office of  
the clerk of the within Entry named Court on \_\_\_\_\_
- ( ) that an Order of which the within is a true copy will be presented for Notice of settlement  
to the Hon. \_\_\_\_\_ one of the Judges of the Settlement within named Court, on \_\_\_\_\_,  
at \_\_\_\_\_
-